

25STCP01952 25STCP01952

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Case Number: 25STCP01952 Hearing Date: August 21, 2026 Dept: 833

Jeremy A. Gerami, Case No. 25STCP01952

v.

Hearing:

August 21, 2026

Location:

Stanley Mosk Courthouse

Department:

833

Montebello

Unified School Dist., Judge:

Joseph Lipner

[Tentative] Order on

Petition for Writ of Mandate

INTRODUCTION

Petitioners

Jeremy A. Gerami ("Petitioner" or "Gerami"), a self-represented litigant, and Gerami Architectural Corporation ("GAC"; collectively "Petitioners") filed this petition for a writ of mandate directing Respondent Montebello Unified School District ("Respondent" or "MUSD") to produce all records that are responsive to Petitioner's requests made under the California Public Records Act ("CPRA"). Respondent canceled a bid for architectural services, for which GAC was the only bidder, and then issued a

new request for proposals after Respondent realized that “miscommunications occurred among its staff that resulted in unfairness in the bidding process.”

(Reyes Decl. ¶¶ 8-9.) Petitioner

contends that Respondent “produced only public-facing materials while withholding internal staff emails, draft documents, and internal deliberative communications” related to the decision to cancel the bid and start a new bidding process. (Opening Brief, (“OB”)

p. 1.)

The Court finds that Respondent is not permitted to withhold individual scorer’s worksheets after contract negotiations for the revised project were complete. The Court GRANTS the petition for writ of mandate IN PART, and orders Respondent to release those records to Petitioner in a reasonable amount of time, not to exceed 60 days. The Court DENIES the request for attorneys fees.

BACKGROUND

On

November 1, 2024, Respondent published informal request for bids (“IRFB”) number 16 for the 2024-2025 fiscal year.

(Reyes Decl. ¶ 5, Exh. 1.) IRFB

No. 16 sought bids for architectural services for a new cooler in the warehouse for its nutritional services department.

(Ibid.) On November 16,

2024, GAC submitted a bid proposal in response to IRFB No. 16. (Id. ¶ 6, Exh. 2.) Petitioner is the principal architect of GAC. (Id. Exh. 2.) GAC’s bid was the only bid received in response to IRFB No. 16, and Petitioner, on behalf of GAC, was the only person who attended the job walk required for IRFB No. 16 bidders. (Id. ¶ 7.)

In

a declaration filed in opposition to the petition, Noe Reyes, Respondent’s Director of Procurement & Logistics, declares that the following occurred after GAC submitted its bid:

Staff in MUSD’s facilities and procurement departments verbally discussed that GAC’s bid appeared too expensive, and MUSD’s staff decided to solicit additional bids for the project. Particularly relevant to this action, it must be noted that MUSD employees regularly engage in verbal discussions and do not always reduce such discussions to writing.

Unfortunately, miscommunications between members of MUSD's facilities and procurement departments resulted in: (1) a member of MUSD's facilities department verbally contacting new vendors to participate in a second job walk to familiarize themselves with the anticipated project; (2) the second job walk occurring without said job walk being publicly announced; and (3) a new IRFB No. 40 being generated for the same purpose as IRFB No. 16, without cancelling IRFB No. 16 first. Further, MUSD published IRFB No. 40 on January 17, 2025, after GAC's bid price had already been publicly disclosed through publication of a bid tabulation. Based on verbal discussions not reduced to writing, that bid tabulation was revised to include the bid price proposed by another bidder.

Mr. Gerami began contacting MUSD's staff in January 2025, apparently after realizing that MUSD published IRFB No. 40, asking why a new bidding process began regarding a project for which a bidding process had resulted in the public disclosure of Mr. Gerami's bid. Those communications caused MUSD to realize that miscommunications occurred among its staff that resulted in unfairness in the bidding process due to Mr. Gerami's bid price being publicly disclosed while MUSD continued to accept bids, enabling bidders to create their proposal with knowledge of Mr. Gerami's bid pricing. To avoid awarding any contract through an unfair bid process, MUSD decided to cancel IRFB Nos. 16 and 40, and to begin an entirely new bidding process for a comprehensive "turn-key" project not simply to design a warehouse cooler, but to install the same as well.

(Reyes Decl. ¶¶ 8-9.) Apparently, Respondent sought bids for the "turn-key" project to design and install the warehouse cooler through IRFB No. 71. (See Id. Exh. 5, 8.)

On or about April 7 and 16, 2025, Petitioner Gerami submitted CPRA requests to Respondent seeking various records related to IRFB Nos. 16 and 40. (Id. ¶ 10, Exh. 3.) On April 17, 2025, Respondent notified Petitioner that it was in receipt of the requests and would provide responsive, non-exempt documents within the following 14 days. (Ibid.) On May 1, 2025, Respondent notified Petitioner that it needed more time to produce records. (Id. ¶ 11, Exh. 4.) Later on May 1, 2025, Petitioner narrowed the scope of his April 16, 2025, request to seek:

All communications (emails, memos, meeting notes) between District staff regarding: The cancellation of IRFB No. 16;

The claim that IRFB No. 40 was a “duplicate” of IRFB No. 16;

Bid scoring, internal notes, compliance checks, and reviewer documentation.

The basis for canceling IRFB No. 16. The post-deadline acceptance of any bid under IRFB No. 16;

The issuance of IRFB No. 71, including any discussion of scope similarity.

Any legal advice or administrative communications involving:

Evaluation materials for IRFB No. 16....

(Id. ¶ 12, Exh. 5.) According to Respondent’s letter dated May 13, 2025, Petitioner also made a CPRA request on May 7, 2025, that sought various other records related to IRFB Nos. 16, 40, and 71. (Id. Exh. 8.)

On May 7, 13, and 21, and June 6, 2025, Respondent provided documents to Petitioner totaling 191 pages. (Id. ¶¶ 13-16, Exh. 6-11.) Respondent asserted that it was withholding certain records based on multiple CPRA exemptions, including the deliberative process privilege and the public interest exemption in Government Code section 7922.000. (Ibid.)

This petition for writ of mandate was filed on May 27, 2025.

SUMMARY OF THE CPRA

Pursuant to the CPRA (Gov. Code § 7921.000, et seq.)[1], individual citizens have a right to access government records. Article 1, Section 3(b) of the Constitution affirms that “[t]he people have the right of access to information concerning the conduct of the people’s business.” The California Constitution mandates that the CPRA be “broadly construed,” while any statute “that limits the right of access” must be “narrowly construed.” (See Nat’l Lawyers Guild v. City of Hayward (2020) 9 Cal.5th 488, 507.) “Any reasonably segregable portion of a record shall be available for

inspection by any person requesting the record after deletion of the portions that are exempted by law.” (Gov. Code § 7922.525, subd. (b).)

“To establish an

agency has a duty to disclose under [the CPRA], the petitioner must show that: (1) the record ‘qualif[ies] as [a] ‘public record[]’ ...; and

(2) the record is ‘in the possession of the agency.’” (Anderson-Barker v Sup.Ct. (2019) 31 Cal.App.5th 528, 538.) Once that initial

burden is met, the agency has the burden to prove “that a particular record is exempt from disclosure.” (Sacramento County Employees’ Retirement

System v. Superior Court (2013) 195 Cal.App.4th 440, 453.) “Because the agency has full knowledge of the contents of the withheld records and the requester has only the agency’s affidavits and

descriptions of the documents, its affidavits must be specific enough to give

the requester ‘a meaningful opportunity to contest’ the withholding of the

documents.” (ACLU of Northern Cal. v. Sup.Ct. (2011) 202

Cal.App.4th 55, 83; see also Getz v. Sup.Ct. (2021) 72 Cal.App.5th 637.)

DISCUSSION

A.

Dismissal of GAC

Respondent contends that “because GAC is not represented by any legal

counsel as is required, the petition must be dismissed with respect to GAC.” (Opposition, p. 16.) “[A] corporation cannot represent itself in a

court of record either in propria persona or through an officer or agent who is not an attorney.” (Caressa Camille,

Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1101.) As shown on the cover page of the

petition, the petitioners are Jeremy A. Gerami and Gerami Architectural Corporation (“GAC”). GAC filed a

substitution of attorney on December 24, 2025, stating that GAC would be representing itself. The substitution

was signed by Petitioner Gerami, who is not an attorney. (See Salbert Decl.)

GAC cannot represent itself in this action and cannot be represented by

Gerami. On March 6, 2026, the Court (Goorvitch, J.) set an OSC: re: dismissal

of GAC with prejudice for failure to obtain corporate counsel. (See CLD

Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141,

1149-52.) No additional filing by GAC or Gerami has remedied this issue.

Accordingly, the Court dismisses the petition as it relates to
Petitioner GAC with PREJUDICE.

B.

Respondent's Search for Public Records

Petitioner contends that Respondent did not conduct a
sufficient search for records in response to his CPRA requests. (Opening Brief ("OB") 4.) The CPRA "establishes a basic rule
requiring
disclosure of public records upon request." (City of San Jose v.
Superior Court (2017) 2 Cal.5th 608, 627.)

The CPRA defines public records as "any writing containing information
relating to the conduct of the public's business prepared, owned, used, or
retained by any state or local agency regardless of physical form or
characteristics." (Gov. Code § 7920.530, subd. (a).) In
the context of the CPRA, the term "possession" has been defined to mean both
actual and constructive possession. (City of San Jose, supra, 2 Cal.5th at
p. 623.) However, as relevant to this petition, there are certain limits
on a public agency's duties under the CPRA.

First, the CPRA does not require agencies "to generate new
substantive content to respond to a PRA request." (National Lawyers Guild, San Francisco Bay
Area Chapter v. City of Hayward (2020) 9 Cal.5th 488, 502 (National
Lawyers Guild).) "The rule means
that, for example, agencies need not draft summary or explanatory material,
perform calculations on data, or create inventories of data in response to a
records request." (Ibid.; see also Haynie
v. Sup. Ct. (2001) 26 Cal.4th 1061, 1075.) Second, the CPRA only requires public
agencies to conduct a "reasonable" search for public records:

CPRA

requests invariably impose some burden on public agencies. Unless a records
request is overbroad or unduly burdensome, agencies are obliged to disclose all
records they can locate "with reasonable effort." Reasonable efforts do not
require that agencies undertake extraordinarily extensive or intrusive
searches, however. In general, the scope
of an agency's search for public records "need only be reasonably calculated to
locate responsive documents."

(City of San Jose, *supra*, 2 Cal.5th at p. 627, citations omitted.)

Respondent submits

a declaration of Noe Reyes, its Director of Procurement & Logistics, and written correspondence which summarizes Respondent's production of records to Petitioner. (Reyes Decl. ¶¶ 10-16, Exh.

3-12.) Reyes also explains that Respondent's

employees "regularly engage in verbal discussions" and that not all

communications concerning IRFB No. 16 were reduced to writing. (Id. ¶¶ 8-9.) Although Respondent does not describe the process by which it searched for records, its evidence suggests that its search was reasonable.

Petitioner does

not show that Respondent's search was deficient. Petitioner

contends that "[i]nternal emails obtained by Petitioner confirm that MUSD staff communicated about ... Job-walk scheduling" and that "[n]one of these internal communications were produced under CPRA."

(OB 4, citing Exh. C, D-1, and D-2.)

Contrary to Petitioner's assertion, Respondent produced the email communications and "job-walk scheduling" records shown in Petitioner's Exhibits C, D-1, and D-2. (See Reyes Decl.

Exh. 7 and Exh. 10 at MUSD 1st Prod.000123, 000127, 000132, 000349, 000351.) Nothing on the face of Exhibits

C, D-1, and D-2 suggests that Respondent has additional responsive, non-exempt records that it did not produce. Petitioner

does not submit evidence of any other "internal emails" that show that Respondent failed to conduct a reasonable search for records related to job-walk scheduling.

Petitioner next contends that he obtained internal emails

regarding "Bid receipt issues[,] Procurement irregularities[,] [and] Bid

tabulation revisions" that Respondent did not produce. (OB 4, citing Exh. E-1, E-2.) Petitioner cites to his exhibit "E-1," which is the initial bid tabulation for IRFB No. 16, and exhibit "E-2," which is the revised bid tabulation. Respondent

produced exhibit E-2 to Petitioner.

(Reyes Decl. Exh. 7, 8 at MUSD 1st Prod.000054, 000346.) The only change made between the initial bid tabulation (exhibit E-1) and the revised bid tabulation (exhibit E-2) is the addition of one more contractor.

Respondent submits evidence that no written internal communications exist regarding that addition. (Reyes Decl. ¶ 8.) Petitioner does not submit evidence of any other “internal emails” that show that Respondent failed to conduct a reasonable search for records related to bid receipt issues, procurement irregularities, and bid tabulation revisions.[2]

Finally, Petitioner contends that Respondent has not described “who conducted the search[,] what systems were searched[,] [or] which custodians were contacted.” (OB 4.) The CPRA does not require the agency to provide such information in response to a CPRA request. (See Gov. Code §§ 7922.530, 7922.535, 7922.540; see National Lawyers Guild, *supra*, 9 Cal.5th at p. 502.) Petitioner could have conducted discovery to obtain information about Respondent’s record retention policies and the reasonableness of its search. (County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 258.) Petitioner apparently declined to pursue discovery.

Based on the foregoing, Petitioner has not proven that Respondent failed to conduct a reasonable search for records in response to his CPRA requests. On the current evidentiary record, it appears that Respondent’s search for records was reasonable and legally sufficient.

C.

The Deliberative Process Privilege and Catchall Exemption

Respondent asserts that it properly withheld “individual scoring worksheets for the purpose of ensuring candid evaluation and scoring by MUSD’s decisionmakers” pursuant to the deliberative process privilege and the CPRA’s catchall exemption. (Opposition, pp. 12-15.)

“Under the deliberative process privilege, senior officials of all three branches of government enjoy a qualified, limited privilege not to disclose or to be examined concerning not only the mental processes by which a given decision was reached, but the substance of conversations, discussions, debates, deliberations and like materials reflecting advice, opinions, and recommendations by which government policy is processed and formulated.”² (Citizens for Open Government v. City of Lodi (2012) 205 Cal.App.4th 296, 305.) “The key question in every case is whether the disclosure of materials would expose an agency’s decisionmaking process in such a way as to

discourage candid discussion within the agency and thereby undermine the agency's ability to perform its functions.”

(Rogers v. Superior Court (1993) 19 Cal.App.4th 469, 477-478.) The government agency claiming the deliberative process exemption must show that on the facts of a particular case “the public interest in nondisclosure clearly outweighs the public interest in disclosure.” (See Citizens for Open Government, supra, 205 Cal.App.4th at 306; see also Times Mirror Co., supra, 53 Cal.3d at 1344.)

Similarly, the catchall exemption in Government Code section 7922.000 “allows a government agency to withhold records if it can demonstrate that, on the facts of a particular case, the public interest served by withholding the records clearly outweighs the public interest served by disclosure.” (City of San Jose v. Sup. Ct. (1999) 74 Cal.App.4th 1008, 1017.) “The burden of proof is on the proponent of nondisclosure, who must demonstrate a ‘clear overbalance’ on the side of confidentiality.” (Id. at p. 1018.) “If the records sought pertain to the conduct of the people’s business there is a public interest in disclosure. The weight of that interest is proportionate to the gravity of the governmental tasks sought to be illuminated and the directness with which the disclosure will serve to illuminate.... [I]n assigning weight to the general public interest in disclosure, courts should look to the nature of the information and how disclosure of that information contributes to the public’s understanding of government.” (Humane Society of U.S. v. Sup.Ct. (2013) 214 Cal.App.4th 1233, 1268, internal quotation marks omitted.) Significantly, “for the public interest to carry weight, it must be more than ‘hypothetical’ or ‘minimal.’ Where a requester has an alternative, less intrusive means of obtaining the information sought, the public interest in disclosure is minimal.” (LAUSD v. Sup.Ct. (2014) 228 Cal.App.4th 222, 242, citation omitted.)

1.

The Public Interest in
Nondisclosure

There is a compelling public interest in nondisclosure of individual scoring worksheets before contract negotiations are completed. As stated by Respondent, “[n]ondisclosure

of the preliminary scoring worksheets prepared by individual scorers serves the public interest by dissuading retaliation, interference, lobbying, and solicitation from prospective bidders who are engaged in a competitive process that provides an inherent incentive to influence decisionmakers to award a contract that could financially benefit a prospective bidder.” (Opposition, p. 12; Reyes Decl. ¶ 13.) In short, premature disclosure of individual scoring worksheets would impair Respondent’s “negotiation and selection processes.” (Michaelis, Montanari & Johnson v. Superior Court (2006) 38 Cal.4th 1065, 1074.)

However, the contract negotiations for the revised project concluded on January 21, 2026, after the writ petition was filed. (Reyes Decl. ¶ 9.) Therefore, the issue is whether the public interest in nondisclosure continues after the bid has been awarded and the contract negotiations have been completed. In Michaelis, supra, our Supreme Court held that a public agency may withhold the bid proposals it receives until the time an agency completes its contract negotiations related to the project in question. The Court found a public interest in disclosure “after negotiations are complete.” (Michaelis, supra, 38 Cal.4th at pp. 1073-74.)

Respondent seeks to distinguish Michaelis on the grounds that “future bidders could use individual scoring worksheets from past projects to formulate aggressive lobbying strategies aimed at what the bidder perceives to be a specific scorer’s evaluation methodologies.” (Opposition, p. 15.) This is speculation. Respondent has not provided any evidence that “future bidders” are likely to obtain an unfair advantage from reviewing individual scoring worksheets from past projects. Further, since this information would be available to all bidders, it is unclear how it would unfairly impact the bidding process for a future project.

Respondent also justifies nondisclosure after contract negotiations have ended based on the following statement in Reyes’ declaration:

MUSD did not provide the individual scorer’s worksheets for the purpose of ensuring candid evaluation free from retaliation, interference, lobbying, and solicitation from prospective bidders who are engaged in a competitive process that provides an inherent incentive to influence decisionmakers to award a contract that could financially benefit a prospective bidder. More specifically, MUSD

seeks to serve the public interest by ensuring that prospective bidders are unable to improperly exert influence over specific scorers based on any perception gleaned from individual scoring worksheets that some action taken with respect to an individual scorer might be likely to increase the combined final score.

(Reyes Decl. ¶ 13 [emphasis added].)

Reyes' declaration does not justify nondisclosure because the bidding process and contract negotiations are completed. There is no longer a "competitive process" in which prospective bidders could obtain an unfair advantage by reviewing individual scoring worksheets. To the extent Reyes contends that individual scoring worksheets will provide an unfair advantage to bidders in future projects, that is speculation as discussed above. Also, Respondent did not redact the names of the evaluators/scorers, Steve Sandoval and Tim Jones, from the final evaluation score worksheet. (Reyes Decl., Exh. 7, MUSD 1st Prod.000347; see also Exh. 8, MUSD 1st Prod.000015.) Therefore, Respondent cannot claim a public interest in nondisclosure of the names of the scorers.

Respondent asserts that there is not a public interest in disclosure because Respondent "has already disclosed the final score sheet that enables the public to see how it scored bidders on criteria initially disclosed to the public through the informal request for bids." (Opposition, p. 13; see Reyes Decl. ¶ 13.) At the same time, Respondent concedes that the individual scoring worksheets contain information about "evaluation methodologies" that is not disclosed in the final score sheet. Therefore, the disclosure of the final score sheet does not bolster the argument that there is a public interest in nondisclosure of the worksheets.

2.

The Public Interest in
Disclosure

"[T]he competitive bidding process is intended to assure a healthy degree of competition, to guard against discrimination, favoritism, or extravagance, and to assure the best social, environmental, and economic result for the public. Accordingly, the public may have a legitimate and substantial interest in scrutinizing the process

leading to the selection of the winning proposal.” (Michaelis, supra, 38 Cal.4th at p. 1074.)

In this case, the public interest in disclosure of the individual scoring worksheets is strong because of the circumstances leading up to the revised “turn-key” project. As explained by Reyes:

[M]iscommunications

between members of MUSD’s facilities and procurement departments resulted in:

(1) a member of MUSD’s facilities department verbally contacting new vendors to participate in a second job walk to familiarize themselves with the anticipated project; (2) the second job walk occurring without said job walk being publicly announced; and (3) a new IRFB No. 40 being generated for the same purpose as IRFB No. 16, without cancelling IRFB No. 16 first. Further, MUSD published IRFB No. 40 on January 17, 2025, after GAC’s bid price had already been publicly disclosed through publication of a bid tabulation. Based on verbal discussions not reduced to writing, that bid tabulation was revised to include the bid price proposed by another bidder.

Those

communications caused MUSD to realize that miscommunications occurred among its staff that resulted in unfairness in the bidding process due to Mr. Gerami’s bid price being publicly disclosed while MUSD continued to accept bids, enabling bidders to create their proposal with knowledge of Mr. Gerami’s bid pricing. To avoid awarding any contract through an unfair bid process, MUSD decided to cancel IRBF Nos. 16 and 40, and to begin an entirely new bidding process for a comprehensive “turn-key” project not simply to design a warehouse cooler, but to install the same as well.... Notably, this incident caused MUSD staff to implement new policies and procedures designed to avoid the problems that occurred.

(Reyes Decl. ¶¶ 8-9.)

Because there was “unfairness” in the original bidding process, the public has a strong interest in inspecting the individual scoring worksheets for the revised project to ensure that the final bidding process was fair. Since the contract negotiations for the revised project have ended, there is no longer a strong public interest in nondisclosure. Therefore, Respondent has not shown a “clear overbalance” on the side of

confidentiality for the individual scoring worksheets. Those records are not exempt from disclosure and must be produced.

D.

Privilege Log

Petitioner argues that Respondent “did not identify any specific exemption applicable to withheld records and did not provide a privilege log.” (OB 5.)

Contrary to Petitioner’s assertion, Respondent did identify the exemptions upon which it withheld records.

Specifically, in its May 13, and 21 2025, letters, Respondent asserted that it was withholding records based on the deliberative process privilege and the public interest exemption in Government Code section 7922.000, among other exemptions. (Reyes Decl. Exh. 8, 9.) Respondent was not required to produce a

privilege log with its response to the CPRA requests. (National Lawyers Guild v. City of Hayward (2020) 9 Cal.5th 488, 502 [“[A]gencies need not draft summary or explanatory material, perform calculations on data, or create inventories of data in response to a records request.”]; see Haynie v. Superior Court (2001) 26 Cal.4th 1061, 1065.)

The issue is whether Respondent should be ordered to prepare a privilege log at this time. “[B]ecause the party opposing disclosure under any CPRA exemption always bears the burden of proving the exemption applies ... on the facts, doubtful cases must always be resolved in favor of disclosure.” (Essick v. County of Sonoma (2022) 81 Cal.App.5th 941, 950.) While government agencies are generally “entitled to a presumption that they have reasonably and in good faith complied with the obligation to disclose responsive information ... that presumption cannot be permitted to obstruct the prodisclosure purposes of the [C]PRA.” (ACLU of Northern Cal. v. Sup.Ct. (2011) 202 Cal.App.4th 55, 83.)

To carry its burden, the [agency] must describe the justification for nondisclosure with reasonably specific detail and demonstrate that the information withheld is within the claimed privilege or exemption. This process cannot require an agency to disclose the very information it seeks to protect. Having both the burden of proof and all the evidence, the agency has the difficult task of justifying its withholding; the documents without compromising that very act by revealing too

much information. However, declarations supporting the agency's claims of exemption must be specific enough to give the requester a meaningful opportunity to contest the withholding of the documents and the court to determine whether the exemption applies.

(Golden Door Properties, LLC v. Sup. Ct. (2020)

53 Cal.App.5th 733, 790, citations and internal quotations and alterations omitted.)

Significantly, if the agency's declarations are not sufficiently detailed, the agency "should be afforded an opportunity to file supplemental declaration(s) in the superior court containing information from which the court may make an informed decision on privilege and exemption claims." (Golden Door, *supra*, 53 Cal.App.5th at p. 792.) "[T]he agency must describe each document or portion thereof withheld, and for each withholding it must discuss the consequences of disclosing the sought-after information." (Id. at p. 790.)

Here, Respondent concedes that it withheld certain records based on the deliberative process privilege and the public interest exemption in Government Code section 7922.000.

(Reyes Decl. Exh. 8, 9.) Significantly,

Respondent's CPRA correspondence indicated that Respondent may have withheld records based on several other exemptions:

The District

is not providing records as exempt under one or more of the following:

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Attorney-client privilege. Evidence Code § 950 et seq.;

- Attorney

work product. Code of Civil Procedure § 2018 et seq.;

- Drafts.

Government Code § 7927.500;

- Official

Information privilege. Evidence Code § 1040;

-

Deliberative process privilege. Government Code § 7922.000;

- Exempted

or prohibited pursuant to federal or state law. Gov. Code § 7927.705; and

- Public

interest exemption. Government Code § 7922.000.

(Id. Exh. 8, 9.)

Although Respondent was not required to produce a privilege log with its response to the CPRA requests, Respondent was required to provide sufficient information so that the court could determine that Respondent properly withheld all the records at issue. (Golden Door, supra, 53 Cal.App.5th at 790-792.) After a CPRA petition has been filed, the court has discretion to order the agency to prepare a list of responsive records for which it claims exemptions. (See Haynie v. Sup. Ct. (2001) 26 Cal.4th 1061, 1072-1072; see also State Bd. of Equalization v. Sup. Ct. (1992) 10 Cal.App.4th 1177, 1193 [“Although the Public Records Act does not, like the FOIA, require the maintenance of an index of records available for public inspection and copying, it does not prohibit a court from ordering the preparation of a list of the documents which are sought.”].)

Respondent identifies the “individual scorer’s worksheets” as the only responsive records that were withheld. (Reyes Decl. ¶ 13; Sandoval Supp. Decl. ¶ 5.) Respondent has complied with the Court’s March 6, 2026 order requiring a supplemental declaration affirming that no other responsive records were withheld. (Minute Order of March 6, 2026, p. 2.)

The March 6, 2026 minute order does not require anything else besides an affirmation that no other records were withheld. Petitioner contends that Respondent needed to “identify the custodians involved in the search, the electronic systems or repositories examined, the search methods employed, or whether the communications relating to vendor outreach and the second job walk were included within the scope of the search.” (Petitioner’s Supplemental Brief, 2:2-5.) Petitioner does not cite any authorities requiring Respondent to provide a declaration that it conducted an “adequate search.” (National Lawyers Guild, supra, 9 Cal.5th at p. 502.) No such search adequacy declaration is required, because a government agency does not need to create

new records explaining how it performed a search.

In his most recent filing, Petitioner cites *Becerra v. Superior Court* (2020) 44 Cal.App.5th 897, 930. In that case, the Court of Appeal found that a government's declaration was lacking in meaningful detail because it did not show that the expense and inconvenience of responding to records outweighed the public interest in disclosure. (*Ibid.*) In this case, Respondent did not decline to withhold records on the grounds that expense and inconvenience outweighed the public interest in disclosure. Petitioner in this case does not contend that the government improperly balanced competing values (expense vs. public interest in disclosure) which determine whether records will be released. Therefore, *Becerra* is inapposite.

E.

In Camera Review

In camera review of the unredacted records is permitted under the CPRA, but it is not required. (See e.g. Gov. Code § 7923.105(a); see *American Civil Liberties Union of Northern Cal. V. Sup. Ct.* (2011) 202 Cal.App.4th 55, 74.) Neither party has shown that in camera review is necessary at this time.

F.

Attorneys Fees

Petitioner Gerami requests an award of attorney's fees pursuant to Government Code section 7923.115. (OB 5.) Petitioner has not filed a noticed motion describing the amount of fees that he seeks or the legal and factual grounds for an award of fees. Thus, Petitioner's request for attorney's fees is denied without prejudice.

CONCLUSION

Based

on the foregoing, the court orders as follows:

1.

The court grants, in part, the
petition for writ of mandate of Petitioner Gerami.

2.

Respondent shall produce to
Petitioner the individual scorer's worksheets identified in the Reyes
declaration. (Reyes Decl. ¶ 13.) The
records shall be released to Petitioner in a reasonable amount of time, not to
exceed 60 days.

3.

Petitioner's
request for attorney's fees is denied without prejudice.

IT IS SO ORDERED.

Dated: August 21,
2026

Joseph
Lipner

Superior
Court Judge

[1] The CPRA statutes
were re-numbered effective January 1, 2023.
Unless otherwise stated, statutory references are to the Government
Code.

[2] Petitioner does
not argue that Respondent presently has a duty to produce exhibit E-1, even
though this bid tabulation is essentially the same as that shown in exhibit E-2.